

**LAKES TREATMENT CENTER, INC., et al v
LAKE TULLOCH, LLC, et al**

21CV45585

DEFENDANT VAN'S MOTIONS TO COMPEL

This case stems from a property dispute between The Lakes Treatment Center, Inc. ("LTC") and Bernadette Cattaneo ("Cattaneo") (collectively, "Plaintiffs"), and The Resort at Lake Tulloch, ("Resort"), Narullah Safdari ("Safdari"), Odell Tristin ("Tristin"), Michael Van ("Van"), Andreas Ambramson ("Ambramson"), and Diamond Dirt LLC ("Diamond") (collectively, "Defendants.")

Now before the Court are three motions to compel brought by Van against co-Defendants Safdari and Tristin. Specifically, Van brings against Tristin two motions: 1) Motion to Compel Verified Responses to Request for Production, Set One ("RFP") and 2) Motion to Compel Compliance with Responses to RFPs. As against Safdari, Van brings a Motion to Compel Verified Responses to Request for Production, Set One ("RFP.")

The motions are unopposed. For convenience, the Court will refer to Safdari and Tristin as "Defendants" unless otherwise specified.

The motions do not comply with California Rules of Court 3.1345 because they do not contain a separate statement. The purpose of the separate statement is so that "no person is required to review any other document in order to determine the full request and the full response." (Cal. Rules of Court 3.1345(c).) Although the court has discretion to deny the motions based on this failure, for expediency the Court considers the motions. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409 fn. 14.)

I. Procedural History

On June 27, 2025, Van served Defendants with Request for Production, Set One ("RFP"). (Declaration of Michael J. Laino ("Laino Decl.") ¶ 2, Exs. A and B.) Both Defendants failed to provide any timely response, thus Van's attorney sent a meet and confer requesting object-free responses by August 15, 2025 and production of documents by August 22, 2025. (*Id.* ¶¶ 3-4, Ex. C.) No responses were provided. (*Id.* ¶

5.) After subsequent follow up with Defendants' attorney, responses were due by September 8, 2025, but were not provided by that deadline. (*Id.* ¶ 5.) However, on September 9, 2025, responses were provided to the other parties but not to the propounding party – Van. (*Id.* ¶ 6.)

It is unclear whether Van's counsel was ever actually served with the responses, or whether he obtained the responses from the other parties. However, at some point some responses were provided. However, the responses were unverified. (Laino Decl. ¶ 7.) Additionally, counsel for Defendants stated that Tristin would not provide any of the requested "communications" unless Van provided a vendor to collect them. (*Id.* ¶ 8.) Additionally, the responses "strategically omitted RFP No. 6." (*Ibid.*) Van's counsel avers as follows:

Although Defendants purported to include a response to RFP No. 6, Defendants intentionally misnumbered their response to RFP No. 7 in an effort to avoid responding to RFP No. 6. For clarity, Van's actual RFP No. 6 requested "All agreements between YOU and PLAINTIFFS, including any drafts of such agreements." (See Ex. A.) In response, Defendants omitted their response to Van's actual RFP No. 6, and instead misnumbered their response to Van's RFP No. 7 as their purported response to RFP No. 6. (Laino Decl. ¶ 7, Exs. E and F.)

Throughout September and October 2025, Van's attorneys made repeated attempts to obtain the requested documents from Defendants' attorney. (Laino Decl. ¶¶ 8-12.) By October 29, 2025, only two responsive emails had been provided, and despite repeated requests for a time for Van to pay for the data collection, no dates were provided for this to occur. (*Id.* ¶ 13.)

As of the date of the motions, Defendants have continued to refuse to provide any response to RFP No. 6, and have refused to provide verifications for their responses to RFP Nos. 1-5 and 7. Tristin has also refused to provide a date and time at which Van may have the vendor collect the agreed-upon communications.

Defendants have also failed to file any opposition which the Court notes may be "deemed a consent to the granting of the motion." (Cal. Rules of Court, 8.54(c).)

II. LEGAL STANDARD

Pursuant to Code Civ. Proc. section 2031.300, if a party to whom requests for production of documents fails to serve a timely response then:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240 and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

On receipt of a response to a Request for Production of Documents, the demanding party may move for an order compelling further responses to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (CCP § 2031.310(a).)

Motions to compel further responses to RPDs must set forth specific facts showing good cause justifying the discovery sought by the request. (CCP § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531; see also *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

III. DISCUSSION

Defendants were properly served with the RFPs. They have both failed to provide verified responses and have failed to respond to RFP No. 6 at all. They have not filed any opposition which would explain their failures.

Defendants are therefore ordered to provide verified, objection-free responses to RFP No. 6 within fifteen (15) days of this order.

Defendants are therefore ordered to provide verified, objection-free responses to RFP Nos. 1-5 and 7 within fifteen (15) days of this order.

Finally, Tristin has failed to provide the documents which he had promised repeatedly to provide in his responses. Tristin's counsel refused to provide the requested documents and communications unless Van agreed to pay for the extraction of those communications via vendor. (Laino Decl. ¶ 8.) Thereafter, Van agreed to pay for that cost and provide a vendor but for months Tristin's attorney has failed to allow this to proceed. (*Id.* ¶¶ 9-13.) Accordingly, within fifteen (15) days of this order, Tristin is ordered to provide a date and time within the next 30 days in which the vendor may proceed to extract the requested communications, or produce the documents at his own initiative and expense.

Sanctions

Van seeks sanctions as a result of the Defendants' failure to participate in the discovery process.

The Court must impose sanctions in the amount of \$1,000 (in addition to other reasonable sanctions) for the failure to provide responses to RPDs. (Code Civ. Proc. § 2023.050(a).) The Court may also impose sanctions for the failure to respond to discovery requests as a misuse of the discovery process. (Code Civ. Proc. § Section 2023.030(a).) The Court may impose sanctions even where, as here, there has been no opposition filed. (Cal. Rule of Court 3.1348.)

Van's attorney states that he has incurred fees related to this discovery dispute as follows:

1. Tristin's refusal to produce the documents as agreed: \$4,833.00 in fees and \$60 in costs. This is based on counsel's statement that he

spent 11.1 hours at \$430 per hour to prepare the motion to compel compliance.

The Court finds that \$430 is excessive in this area and reduces counsel's hourly rate to \$300. Thus, for the motion to compel compliance, **Tristin is ordered to pay \$3,300.00 in sanctions and \$60 in filing fees for a total of \$3360.00.**

2. Defendants' refusal to respond to RFP No. 6 and to provide verifications to RFP Nos. 1-5, and 7: \$3775.00 for both motions plus \$120 in filing fees. This is based on counsel's statement that he spent 8.5 hours. At the Court's reduced rate of \$300 per hour, this totals \$2,550.00.

On the motions to compel production and verified responses, Tristin is ordered to pay \$1,275.00 in attorney's fees plus \$60 in filing fees for a total of \$1,335.00.

On the motions to compel production and verified responses, Safdari is ordered to pay \$1,275.00 in attorney's fees plus \$60 in filing fees for a total of \$1,335.00.

Accordingly, Van's motion for sanctions is granted as follows:

Tristin is ordered to pay \$5,195.00 in sanctions and costs (\$4695.00 in attorney's fees sanctions plus \$500 of the mandatory \$1,000 sanction).

Safdari is ordered to pay \$1835 in sanctions and costs (\$1335.00 plus \$500 of the mandatory \$1,000 sanction).

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Orders..

ANDREWS v ANDERSON

23CV46644

PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL; DEFENDANT'S MOTION TO ENFORCE SETTLEMENT

This case involves a breach of contract dispute Meg Andrews ("Plaintiff") and David Anderson ("Anderson,") Anderson Construction ("Construction") and Heather Ugale ("Ugale") (collectively "Defendants.")

Now before the Court are two competing motions: Defendants move to enforce a settlement agreement ("Agreement") between the parties, while Plaintiff moves to set aside the dismissals entered pursuant to the Agreement and to set the matter for trial. As the motions relate, the Court will consider them together herein.

I. Background

On March 17, 2023, Plaintiff, by and through her then-counsel Lawrence Niermeyer ("Niermeyer") filed the present action against Defendants alleging: 1) breach of contract, 2) fraud, 3) conspiracy, 4) accounting, and 5) elder abuse. Plaintiff alleged that Defendants orally contracted to construct a family home for her, were paid for those services, and yet Defendants failed to do the required work. After subsequent demurrers, Plaintiff filed a third amended complaint on October 25, 2023, alleging breach of contract, fraud and elder abuse. After another demurrer, the remaining allegations allowed by Plaintiff were for breach of contract and fraud.

The parties proceeded with discovery and discovery disputes throughout 2024, with Plaintiff continuing to be represented by attorney Niermeyer. On January 13, 2025, the Court held a mandatory settlement conference, at which Plaintiff was present with her counsel Niermeyer. The parties did not reach a settlement, and the matter was set for trial on August 6, 2025.

On July 23, 2025, Niermeyer filed a notice of settlement of the entire action. The notice stated that the settlement was conditional upon certain items and that dismissal would be undertaken before January 15, 2026. On that same date, Niermeyer filed a notice of dismissal for both Construction and Ugale. The court trial scheduled for August 6, 2025, was vacated.